

26TRCV00262 26TRCV00262

County: los-angeles

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Case Number: 26TRCV00262 Hearing Date: August 13, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

ARA HAKOBYAN

;

Plaintiff,

vs.

TESLA INSURANCE SERVICES

;

Defendant.

Case

No.:

26TRCV00262

Hearing

Date:

August
13, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF ARA HAKOBYAN'S PETITION TO COMPEL
UNINSURED MOTORIST ARBITRATION, SET AN ARBITRATION COMPLETION DATE, APPOINT A
NEUTRAL ARBITRATOR, AND PAY ARBITRATION COSTS

MOVING PARTY: Plaintiff, Ara Hakobyan

RESPONDING

PARTY: Defendant, Tesla Insurance
Services

(1)

Plaintiff

Ara Hakobyan's Petition to Compel Uninsured Motorist Arbitration, Set an
Arbitration Completion Date, Appoint a Neutral Arbitrator, and Pay Arbitration
Costs is GRANTED IN PART pursuant to Insurance Code section 11580.2 and Code of
Civil Procedure section 1281.6.

The Court considers the moving
papers filed on May 22, 2026, the opposition brief filed on August 3, 2026, and
the reply brief filed on August 6, 2026.

BACKGROUND

Factual Background

On December 1, 2025, counsel
for plaintiff Ara Hakobyan ("Plaintiff") served a formal demand for Uninsured
Motorist Arbitration pursuant to Insurance Code section 11580.2 on defendant

Tesla Insurance Services ("Defendant"). (Declaration of Morris Chichyan ("Chichyan Decl."), ¶ 4, Exh. B.)

Subsequently, on December 22,

2025, Plaintiff's counsel followed up after Defendant failed to respond. (Chichyan Decl., ¶ 5, Exh. C.) During this follow-up, Plaintiff's counsel

requested that Defendant provide a list of preferred neutral arbitrators. (Chichyan Decl., ¶ 5, Exh. C.) They also indicated that they would file a

Petition to Compel Uninsured Motorist Arbitration if Defendant did not respond

by January 5, 2026. (Chichyan Decl., ¶

5, Exh. C.)

On January 26, 2026, Plaintiff

filed a Complaint against Defendant and DOES 1 through 20. The Complaint includes one cause of action:

(1) Petition to Pursue Uninsured/Underinsured Motorist Claims.

On May 27, 2026, at 8:50 a.m., Plaintiff served Defendant via personal service.

On June 11, 2026, Defendant retained counsel for this matter. (Declaration of Renee G. Cash ("Cash Decl."),

¶ 3.) On the same day, Defendant's

counsel emailed Plaintiff's counsel to inform them that Defendant agreed to

Plaintiff's demand for arbitration.

(Cash Decl., ¶ 3, Exh. 1.)

On June 30, 2026, Defendant's counsel emailed Plaintiff's counsel to

discuss the selection of a mutually acceptable neutral arbitrator. (Cash Decl., ¶ 4.) Defendant's counsel emphasized that, while Defendant

is open to choosing a neutral arbitrator, Defendant has the "right to conduct

the necessary discovery to prepare for the arbitration hearing; thus, selection

of a date for the hearing was premature."

(Cash Decl., ¶ 4.)

LEGAL STANDARD

Recovery by an insured on an uninsured or underinsured motorist ("UIM/UM")

provision of an automobile insurance policy is governed by Insurance Code

section 11580.2. If the insured and

insurer cannot agree as to whether the insured is entitled to benefits under

the UIM/UM provision or how much the insured is entitled to, the matter must be

decided by arbitration conducted by a single neutral arbitrator. (Ins. Code, § 11580.2, subd. (f).) The discovery methods provided in Title 4 of

the Code of Civil Procedure (the Civil Discovery Act) are available to either party, both before and after the commencement of arbitration, and the Superior Court has jurisdiction to adjudicate discovery disputes. (Ins. Code, § 11580.2, subds. (f), (f)(2).)

“No cause of action shall accrue to the insured under any policy or endorsement provision issued pursuant to this section unless one of the following actions have been taken within two years from the date of the accident: ¶ (A) Suit for bodily injury has been filed against the uninsured motorist, in a court of competent jurisdiction. ¶ (B) Agreement as to the amount due under the policy has been concluded. ¶ (C) The insured has formally instituted arbitration proceedings by notifying the insurer in writing sent by certified mail, return receipt requested. Notice shall be sent to the insurer or to the agent for process designated by the insurer filed with the department.” (Ins. Code, § 11580.2, subd. (i)(1).)

Code of Civil Procedure section 1281.2 permits a party to file a petition to request that the court order the parties to arbitrate a controversy. The court may grant the motion if the court determines that an agreement to arbitrate the controversy exists unless the petitioner has waived the right to arbitrate or there are other grounds for rescission. (Code Civ. Proc., § 1281.2, subds. (a)-(b).)

When a motion to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. (Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413.) The moving party bears the burden of proving its existence by a preponderance of the evidence because the existence of the agreement is a statutory prerequisite to granting the petition. (Ibid.)

There are two “common themes” in case law interpreting the scope of arbitration under Insurance Code section 11580.2, subdivision (f): “(1) arbitration of issues other than liability and damages is appropriate if the parties have contractually agreed to arbitrate more than is required by section 11580.2, subdivision (f); and, (2) only issues of liability and damages may be decided in an arbitral forum if the parties did not agree to arbitrate more than is required by section 11580.2, subdivision (f).” (Bouton v. USAA Casualty Insurance Co. (2008) 43 Cal.4th 1190, 1197.)

DISCUSSION

Plaintiff requests

that the Court issue an order to: (1) compel the parties to engage in arbitration in accordance with Insurance Code section 11580.2; (2) appoint a neutral arbitrator pursuant to Code of Civil Procedure section 1281.6; (3) set an arbitration completion date within 180 days following the hearing on this petition; and (4) enforce the stipulation within the arbitration agreement that mandates Defendant to bear all associated arbitration costs. (Petition, pp. 4:19-22, 7:1-3.)

Existence of an
Arbitration Agreement

As a preliminary matter, the parties agree that an arbitration agreement exists and that they should proceed to arbitration in accordance with Insurance Code section 11580.2. (Opp., pp. 1:26-2:2.)

Plaintiff provides a copy of the automobile policy, which includes the arbitration agreement (the "Agreement"). (Cash Decl., ¶ 3, Exh. A.) The Agreement specifies, in pertinent part:

"1. If [Defendant] and [Plaintiff] do not agree: ¶ a. Whether that [Plaintiff] is legally entitled to recover damages; or ¶ b. As to the amount of damages which are recoverable by that [Plaintiff]; ¶ from the owner or operator of an 'Uninsured or underinsured motor vehicle', then the matter may be arbitrated. However, disputes concerning coverage under this endorsement may not be arbitrated. Both parties must agree to arbitration. If so agreed, each party will select an arbitrator. The two arbitrators will select a third. If they cannot agree within thirty (30) days, either may request that selection be made by a judge of a court having jurisdiction.

2. [Defendant] will pay all arbitration expenses. Arbitration expenses will not include [Plaintiff's] attorney's fees or any expenses incurred

in producing evidence or witnesses.

3. Unless

both parties agree otherwise, arbitration will take place in the county in which [Plaintiff] lives. Local rules of law as to procedure and evidence will apply. A decision agreed to by two of the arbitrators will be binding as to: ¶ a. Whether [Plaintiff] is legally entitled to recover damages; and ¶ b. The amount of damages.”

(Chichyan
Decl., ¶ 3, Exh. A.)

Therefore, Plaintiff provides prima facie evidence of a written agreement to arbitrate the dispute. However, Defendant agreed to arbitration on June 11, 2026. (Cash Decl., ¶ 3.) Consequently, Plaintiff’s request to compel arbitration is DENIED as MOOT.

Appointing a Neutral Arbitrator

“If the arbitration agreement provides a method of appointing an arbitrator, that method shall be followed. If the arbitration agreement does not provide a method for appointing an arbitrator, the parties to the agreement who seek arbitration and against whom arbitration is sought may agree on a method of appointing an arbitrator and that method shall be followed. In the absence of an agreed method, or if the agreed method fails or for any reason cannot be followed, or when an arbitrator appointed fails to act and his or her successor has not been appointed, the court, on petition of a party to the arbitration agreement, shall appoint the arbitrator.

When a petition is made to the court to appoint a neutral arbitrator, the court shall nominate five persons from lists of persons supplied jointly by the parties to the arbitration or obtained from a governmental agency concerned with arbitration or private disinterested association concerned with arbitration. The parties to the agreement who seek arbitration and against whom arbitration is sought may within five days of receipt of notice of the nominees from the court jointly select the arbitrator whether or not the arbitrator is among the nominees. If the parties fail to select an arbitrator within the five-day period, the court shall appoint the arbitrator from the

nominees.” (Code Civ. Proc., § 1281.6.)

In this instance, the Agreement stipulates: “Both parties must agree to arbitration. If so agreed, each party will select an arbitrator. The two arbitrators will select a third. If they cannot agree within thirty (30) days, either may request that selection be made by a judge of a court having jurisdiction.” (Chichyan Decl., ¶ 3, Exh. A.)

On June 11, 2026, Defendant agreed to arbitration. (Cash Decl., ¶ 3.) Consequently, the parties had until July 11, 2026, to reach a consensus on a neutral arbitrator. It appears that neither party has selected their preferred arbitrator, as no evidence has been submitted to the Court indicating such actions. Therefore, the Court is empowered to appoint an arbitrator on their behalf, pursuant to Code of Civil Procedure section 1281.6.

Defendant’s assertion that this request is premature lacks merit. (Opp., p. 2:21-27.) Defendant argues that the issue “can be resolved informally between the parties without unnecessary court involvement” and with additional time. (Opp., p. 2:26-27.) However, as established, according to the Agreement and Code of Civil Procedure section 1281.6, the Court possesses the authority to appoint a neutral arbitrator. Furthermore, both parties have had adequate time to confer regarding the arbitrator.

Nevertheless, the Court observes that neither party has submitted a list of potential arbitrators. As such, the Court is currently unable to appoint a neutral arbitrator. Accordingly, at Plaintiff’s request, the Court shall “issue an Order to Show Cause within thirty (30) days of [this] hearing to determine whether the parties have agreed upon an arbitrator” or provided a list of arbitrators from which the Court can make a selection. (Petition, p. 6:10-11.)

Arbitration Completion Date

“The award shall be made within the time fixed therefor by the agreement or, if not so fixed, within such time as the court orders on petition of a party to the arbitration. The parties to the arbitration may extend the time either before or after the expiration thereof.” (Code Civ. Proc., § 1283.8.)

“[A]bsent an

arbitration completion deadline established by agreement, section 1283.8 gives the trial court the power, on petition of a party to the arbitration, to set a date by which the arbitration proceeding must be completed and the award rendered. The better practice is to

establish that date when the case is first ordered to arbitration. However, the court has discretion to entertain a petition and set a completion date even after the arbitration is in progress.

Of course, any date chosen (whether

before or after arbitration has commenced) must be reasonable in light of the circumstances presented by the particular arbitration.” (Bosworth v. Whitmore (2006) 135 Cal.App.4th 536, 551.)

In this case,

the Agreement does not set a specific deadline for the completion of the arbitration, thereby granting the Court the authority to make this determination. (Chichyan Decl., ¶ 3,

Exh. A.) However, given that an

arbitrator has not yet been appointed, the Court finds that the proposed timeline of 180 days is not reasonable. Consequently,

the Court will set the arbitration completion date for March 11, 2027, which equates to 210 days from today. This

period is intended to allow sufficient time for the parties or the Court to

select an arbitrator, as well as to enable the parties to conduct discovery. Should the parties demonstrate good cause for extending the completion date, the Court is open to considering a deadline extension.

Arbitration Costs

Plaintiff's

request to “enforce the [Agreement's] requirement that [Defendant] pay all arbitration expenses” is DENIED. The

Court observes that the Agreement does not impose an obligation on Defendant to pay for all arbitration costs; rather, it stipulates that Defendant is

responsible for all expenses except for Plaintiff's attorney's fees and any

costs incurred in producing evidence or witnesses. (Chichyan Decl., ¶ 3, Exh. A.) Furthermore, Plaintiff fails to cite any statute or case law that grants the Court the authority to issue such an order. Consequently, Plaintiff's request is DENIED.

ORDERS

1)

Petitioner

Ara Hakobyan's Petition to Compel Uninsured Motorist Arbitration, Set an Arbitration Completion Date, Appoint a Neutral Arbitrator, and Pay Arbitration Costs is GRANTED IN PART.

2)

The

Court sets an Order to Show Cause re: Whether the Parties have Agreed upon an Arbitrator or Provided a List of Arbitrators from which the Court Can Make a Selection for September 11, 2026.

3)

The

Court orders that the arbitration must be completed by March 11, 2027.

4)

Plaintiff

is ordered to provide notice of the Court's ruling.

IT IS SO ORDERED.

DATED: August 13, 2026

Tamara

Hall

Judge

of the Superior Court